

COMPARISON • CANVAS • PROSE

redline

Clause-by-clause comparison — verbatim language with inline ~~/tracking the amendment.~~

CAL. CIV. CODE §1798.135 · AMENDMENT SB-362 (2024)

SB-362 rewrote the opt-out link rule.

A business that ~~collects~~ collects, sells, or shares consumers' personal information shall provide ~~two or more~~ at least one designated method for submitting requests to opt-out, including, at minimum, a clear and conspicuous link on the homepage titled "Your Privacy Choices," for use by consumers to ~~opt out of the sale of~~ direct the business not to sell or share their personal information.

Why this matters. SB-362 collapses sale and sharing into one duty and pins a uniform link title — homepage chrome and DSAR workflows both need a uniform UX.

CAL. CIV. CODE §1798.135 • AMENDMENT SB-362 (2024)

SB-362 rewrote the opt-out link rule — annotated.

A business that ~~collects~~ collects, sells, or shares¹ consumers' personal information shall provide ~~two or more~~ at least one² designated method for submitting requests to opt-out, including, at minimum, a clear and conspicuous link on the homepage titled "Your Privacy Choices,"³ for use by consumers.

- ¹ **Scope expansion.** Collapses sale and sharing into one duty.
- ² **Method floor.** One method is now sufficient; previously two were required.
- ³ **Link mandate.** Pins a uniform link title across all businesses.

CAL. CIV. CODE §1798.135 · AMENDMENT SB-362 (2024)

SB-362 — old, new, and why side-by-side.

OLD

A business that collects consumers' personal information shall provide two or more designated methods for submitting requests to opt out of the sale of their personal information.

NEW

A business that collects, sells, or shares consumers' personal information shall provide at least one designated method for submitting requests to opt-out, including a clear and conspicuous homepage link titled "Your Privacy Choices."

WHY

Scope. Sale and sharing fold into one duty.

Method floor. One method now suffices.

Link title. Homepage label is mandatory and standardised.

CAL. CIV. CODE §1798.135 · AMENDMENT SB-362 (2024)

SB-362 — before and after, side by side.

OLD

A business that collects consumers' personal information shall provide two or more designated methods for submitting requests to opt out of the sale of their personal information.

NEW

A business that collects, sells, or shares consumers' personal information shall provide at least one designated method for submitting requests to opt-out, including a clear and conspicuous homepage link titled "Your Privacy Choices."

Why this matters. The left column is the prior text; the right is the amendment. Reading across makes the scope expansion obvious.

CAL. CIV. CODE §1798.135 • AMENDMENT SB-362 (2024)

SB-362 — prior text struck, current below.

~~OLD — prior text~~

~~A business that collects consumers' personal information shall provide two or more designated methods for submitting requests to opt out of the sale of their personal information.~~

NEW • current

A business that collects, sells, or shares consumers' personal information shall provide at least one designated method for submitting requests to opt-out, including a clear and conspicuous homepage link titled "Your Privacy Choices."

Why this matters. Stacking keeps the reading order vertical when each passage is a full sentence or more.

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When NOT to reach for redline.

Code For two code snippets `compare-code`. redline is for natural language — legal, regulatory, contractual — not source code.

diffs. side-by-side, use

Paraphrased If the quoted text isn't verbatim, the diff is meaningless. `compare-prose` for narrative comparison.

clauses. Either render the actual clause with its diff, or move to

Long passage If one word changed in a paragraph, quote only the affected sentence or two. A wall of unchanged text with one inline mark buries the change.

with one tiny diff.

RELATED COMPONENTS

See also.

`compare-code` — the diff is source code, not natural language

`compare-prose` — two narrative alternatives, not verbatim amendments

`compare-prose` — the change is structural state, not text

`obligation-matrix` — comparing many regimes against shared obligations